

See also: Early legal codes 18–19 ■ The Domesday Book 58–59 ■ The Assize of Clarendon 64–65 ■ Magna Carta 66–71
 ■ The trial of Charles I 96–97 ■ The Salem witch trials 104–105

because in some systems they were permitted to hire champions to fight for them, and because, at least in English law, trial by combat was available in respect of rights to land, which only the wealthy would have. Common in western Europe from at least the 9th century, the practice was imported into England after the Norman Conquest in 1066.

The rules of engagement for trial by combat varied in different countries. In England, each side agreed to the rules under the supervision of the judge, who determined if the case could be decided this way, and gauntlets were exchanged to symbolize that a challenge had been accepted. The combat lasted until one participant was killed, mortally wounded, or cried out “craven” to halt the fight. If the defendant was the loser, he suffered the original penalty for his crime and perhaps additional loss of property. If the plaintiff lost, he had to cede the case and pay a fine.

Disuse and abolition

In 1215, Pope Innocent III banned the clergy from practicing trials by fire and water. Four years later, King Henry III banned the general use of trial by ordeal in England. Trial by combat gradually fell into disuse, and concerns about the practice paved the way for jury trial. By 1819, when trial by combat was removed from the UK statute book, it had become an antiquarian legal curiosity. ■

Two bishops (wearing miters) judge a duel between two knights in medieval France, where the last trials by combat took place in 1386.

